

Deshraj v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 11 September 2019 · WRIT - C No. - 26434 of 2019 · **Writ disposed; petitioner relegated to EE under clause 6.14.**

HEADNOTE

A consumer facing recovery of electricity dues who seeks installment facility is to apply to the Executive Engineer under clause 6.14 of the U.P. Electricity Supply Code, 2005. The writ court will not itself fix installments; the Engineer is to consider the request in accordance with law.

FACTUAL SUMMARY

Deshraj was served a recovery citation dated 20 May 2019 for Rs.13,31,599 as electricity dues after non-payment of a demand. He filed a writ petition in the Allahabad High Court against the recovery. At the hearing, counsel submitted that he was ready and willing to pay if installments were fixed. The recovering office was the Executive Engineer, Vidyut Vitran Khand, District Baghpat. The Court heard both sides and did not examine the demand on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility for electricity dues

HOLDING

Where a consumer facing a recovery citation for electricity dues seeks installment facility, he may approach the Executive Engineer under clause 6.14 of the U.P. Electricity Supply Code, 2005 within two weeks; the Engineer shall consider the request in accordance with law and pass appropriate orders within two weeks thereafter. The writ court does not itself grant installments. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 A consumer facing recovery of electricity dues who seeks installment facility is to apply to the Executive Engineer under clause 6.14 of the U.P. Electricity Supply Code, 2005. The writ court will not itself fix installments; the Engineer is to consider the request in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO INSTALLMENT FACILITY UNDER CLAUSE 6.14

Left to the Executive Engineer to consider in accordance with law. ¶ 1

NOT DECIDED — CORRECTNESS OR QUANTUM OF THE RS.13,31,599 DEMAND AND THE RECOVERY CITATION DATED 20.05.2019

¶ 1